

CONSTITUTIONAL RIGHT TO REPRODUCTIVE FREEDOM. LEGISLATIVE CONSTITUTIONAL AMENDMENT.

OFFICIAL TITLE AND SUMMARY

PREPARED BY THE ATTORNEY GENERAL

The text of this measure can be found on page 77 and the Secretary of State's website at voterguide.sos.ca.gov.

- Existing California laws provide that every individual has a fundamental right to privacy in their personal reproductive decisions, which includes the fundamental right to choose to have an abortion and the fundamental right to choose or refuse contraceptives.
- This measure would amend the California Constitution to expressly include these fundamental rights and prohibit the State from denying or interfering with an individual's reproductive freedom in their most intimate decisions.
- This amendment is intended to further the existing California constitutional rights to privacy and equal protection, and does not narrow or limit these rights.

SUMMARY OF LEGISLATIVE ANALYST'S ESTIMATE OF NET STATE AND LOCAL GOVERNMENT FISCAL IMPACT:

- No direct fiscal effect because reproductive rights already are protected by state law.

FINAL VOTES CAST BY THE LEGISLATURE ON SCA 10 (PROPOSITION 1) (CHAPTER 97, STATUTES OF 2022)

Senate:	Ayes 29	Noes 8
Assembly:	Ayes 58	Noes 17

ANALYSIS BY THE LEGISLATIVE ANALYST

BACKGROUND

FEDERAL LAW

Due to Recent Court Case, Right to Abortion No Longer Protected by U.S. Constitution. In the past, the U.S. Supreme Court found that the U.S. Constitution generally protected the right to abortion. As a result, states had limited ability to place restrictions on abortions. However, in June 2022, the U.S. Supreme Court decided that the U.S. Constitution does not protect the right to abortion. As such, states now have more flexibility to decide whether to allow, limit, or ban abortions.

Federal Law Protects Rights to Contraceptives.

The U.S. Supreme Court has found that the U.S. Constitution protects the right to buy and use contraceptives (such as condoms, birth control pills, and other birth control products). In addition, federal law requires most health insurance plans to pay for contraceptives.

STATE LAW

State Law Provides Right to Reproductive Privacy.

The California Constitution guarantees everyone the right to privacy but does not define what this right includes. However, the California Supreme Court has found that this right to privacy includes the

ANALYSIS BY THE LEGISLATIVE ANALYST

CONTINUED

right to make reproductive choices, such as whether or not to have an abortion or use contraceptives. In addition, state law was later passed to expressly protect these rights.

State Law Places Some Restrictions on Abortions. Because of the way California courts have interpreted the right to privacy, the state can only restrict abortions when needed to meet certain state interests such as public health and safety. For example, California law requires abortion providers to be licensed. In addition, abortions can only be performed on a viable fetus if the pregnancy puts the health or life of the person who is pregnant at risk. Under state law, a fetus is considered viable if the fetus likely would be able to survive outside the uterus.

STATE HELPS PAY FOR HEALTH CARE FOR MANY CALIFORNIANS

California Provides Health Care to Many Low-Income Californians. The federal-state Medicaid program, known as Medi-Cal in California, provides health coverage to eligible low-income California residents. Health care services covered by Medi-Cal include abortions and contraceptives. The state and federal government share the cost of most Medi-Cal services including contraceptives. However, the state pays the full cost of abortions provided through Medi-Cal.

Many Californians Purchase Health Insurance Through Covered California. About 2 million Californians buy health insurance plans through the state's health insurance market, Covered California. Health care services covered by these plans include abortions and contraceptives. For most people enrolled

in Covered California, the state and federal government help pay for at least some of the cost of buying these plans. However, the state alone pays for the cost of the plans to cover abortions for these people.

PROPOSAL

Proposition 1 changes the California Constitution to say that the state cannot deny or interfere with a person's reproductive freedom and that people have the fundamental right to choose:

- Whether or not to have an abortion.
- Whether or not to use contraceptives.

FISCAL EFFECTS

No Direct Fiscal Effect. Proposition 1 would change the California Constitution to expressly include existing rights to reproductive freedom. Because these rights already exist in California, the proposition would have no direct fiscal effect. However, whether a court might interpret the proposition to expand reproductive rights beyond existing law is unclear. If a court finds that the proposition expands these rights, there could be fiscal effects to the state.

Visit <https://www.sos.ca.gov/campaign-lobbying/cal-access-resources/measure-contributions/2022-ballot-measure-contribution-totals> for a list of committees primarily formed to support or oppose this measure.

Visit <https://www.fppc.ca.gov/transparency/top-contributors.html> to access the committee's top 10 contributors.

★ ARGUMENT IN FAVOR OF PROPOSITION 1 ★

VOTE YES ON PROP. 1.

It's simple: Proposition 1 will enshrine the fundamental right to an abortion and a fundamental right to contraceptives in the California State Constitution.

For nearly 50 years, Americans have relied on the legal principle set by *Roe v. Wade* that allowed individuals to make their own reproductive health decisions privately. Access to abortion is no longer federally protected and is under attack across the country.

YES ON PROP. 1 PROTECTS THE RIGHT TO REPRODUCTIVE FREEDOM.

Prop. 1 amends the California State Constitution to explicitly prohibit interference with individual choices on reproductive health. It ensures a fundamental right to choose to have an abortion and protects access to contraceptives. These rights are consistent with existing state constitutional rights to privacy and equal protection under the law.

YES ON PROP. 1 WILL ENSURE THE CHOICE TO SEEK COMPREHENSIVE REPRODUCTIVE HEALTH CARE, INCLUDING ABORTION, WILL ALWAYS BE PROTECTED IN CALIFORNIA.

Millions in other states have already lost their right to an abortion. In those states, patients could be sent to prison for seeking abortions even in the case of miscarriages. And most will be prevented from having abortions even in cases of rape or incest. Their health care providers could also be held criminally liable.

DOCTORS, NURSES AND HEALTH PROVIDERS ALL AGREE.

Yes on Prop. 1 is necessary to keep reproductive medical decisions where they belong—with individuals and their health care providers, based on scientific facts, not political agendas.

Prop. 1 will also protect how a person decides to use contraceptives and establishes guardrails that allow a person to make the choice themselves on how to use or to refuse contraceptives, based on their individual needs.

WE CANNOT—AND MUST NOT—GO BACKWARDS.

Before 1973, women needing essential reproductive health care were often forced to travel long distances or made to seek illegal care, even in the most extreme cases.

Children growing up today should not have fewer rights than their grandparents. But unless we pass Prop. 1, our rights in California could be at risk.

Access to affordable, comprehensive reproductive health care, including abortion, allows people to plan their lives and achieve their dreams. Yes on Prop. 1 protects access to the care that will give individuals and families the freedom to make those choices.

The California Medical Association, Planned Parenthood Affiliates of California, and the League of Women Voters of California support Prop. 1 because no matter who or what political party controls the government, a person's right to an abortion or contraceptives should be protected in California.

We must lead the way to ensure that those who need access to care can get it in California.

Learn more at YESon1CA.com.

VOTE YES ON PROP. 1.

Shannon Udovic-Constant, M.D., Board Chair
California Medical Association

Jodi Hicks, President
Planned Parenthood Affiliates of California

Carol Moon Goldberg, President
League of Women Voters of California

★ REBUTTAL TO ARGUMENT IN FAVOR OF PROPOSITION 1 ★

Proposition 1 is NOT needed to protect abortion rights. But it WILL cost California taxpayers millions.

"California law already allows access to abortion and contraception," says constitutional attorney Heather Hacker. "But unlike state law, which limits late-term abortions unless medically necessary, Proposition 1 has no limit on late-term abortions."

Like other constitutional amendments, Proposition 1 will face numerous lawsuits and court challenges, leaving its fate subject to judicial interpretation.

Do we really want judges deciding this issue?

Equally untrue are claims that Proposition 1 limits late-term abortions. It does not.

Read Proposition 1 for yourself. It contains NO language limiting late-term abortions, nor does it prevent tax money from being used to fund abortions.

The Legislature has already INCREASED abortion funding by \$200 million this year. But advocates of Proposition 1 say that may not be enough. With Proposition 1, the number of abortion seekers from other states will soar, at the expense of California taxpayers.

This is blatantly unfair.

According to *The San Jose Mercury News*, clinics in San Diego, Riverside and Imperial counties have already seen a 1,246% increase in women seeking abortions—just from Arizona.

Proposition 1 is a multi-million-dollar waste of tax money that is not needed to protect women's reproductive freedom. It allows late-term abortions without limitation, and will ignite a protracted legal battle that could take years and cost millions.

To protect taxpayers and existing abortion rights, and to preserve reasonable limits on late-term abortions, vote "NO" on Proposition 1.

Allison Martinez, Executive Director
California Alliance of Pregnancy Care

Brad Dacus, President
Pacific Justice Institute

Dr. Vansen Wong, Gynecologist

★ ARGUMENT AGAINST PROPOSITION 1 ★

Those of us signing this argument have differing views on many issues, including abortion.

But we all agree Proposition 1 is an extreme, expensive, and pointless waste of tax money that will allow unrestricted late-term abortions costing taxpayers millions. This is not the answer.

Proposition 1 was put on the ballot for one reason—to score political points, not to make serious policy.

Women already have the right to choose under current California law. The recent U.S. Supreme Court ruling did not and will not change this. Proposition 1 is NOT needed to protect women's health or their reproductive rights.

Abortions are already legal in California with reasonable limits on late-term abortions, which are allowed if medically necessary to protect the life or health of the mother.

Proposition 1 will destroy this important balance and bake the most extreme abortion law possible into our state constitution.

Proposition 1 will allow late-term abortions at taxpayer expense WITHOUT limitation for any reason at any time up to the moment of birth—even when the mother's life is not in danger, even when the healthy baby could survive outside the womb.

Instead of preserving our state's compassionate and carefully balanced limits on late-term abortions, Proposition 1 will push California far outside the mainstream. Today, most states and 47 European countries limit late-term abortions, including California. A recent Harris Poll found that 90% of Americans support limits on late-term abortions. Likewise, recent polling shows that most California voters support limitations on late-term abortions, as well.

By allowing abortion without limit, Proposition 1 will

turn California into a "sanctuary state" for thousands, possibly millions, of abortion seekers from other states, at a staggering cost to taxpayers.

The pro-abortion Guttmacher Institute estimates that California could see a nearly 3,000% increase in the number of people from other states seeking abortions here, with many coming for more expensive late-term abortions. According to the report, California's annual out-of-state patient load could climb from 46,000 people a year to 1.4 million.

Without limits on late-term abortions, Proposition 1 will push these numbers even higher, draining millions of tax dollars at a time when taxpayers are struggling with inflation and sky-high gas prices.

The Legislature has already committed over \$200 million this year to expand abortion and reproductive services, including tens of millions to pay the expenses for abortion seekers from other states. With a 3,000% increase in the number of people from other states wanting abortions, millions of dollars more will be required to meet soaring demand.

Proposition 1 is an extreme and costly proposal that does nothing to advance women's health or their right to choose. It punishes taxpayers and eliminates all limits on late-term abortions in defiance of what most voters want.

Proposition 1 is a cynical political stunt that was put on the ballot to score political points, not make sensible policy. As usual, taxpayers will pay the price.

We urge a "NO" vote on Proposition 1. It deserves defeat.

Dr. Anne Marie Adams, Gynecologist

Tak Allen, President

International Faith Based Coalition

Assemblymember Jim Patterson

★ REBUTTAL TO ARGUMENT AGAINST PROPOSITION 1 ★

Proposition 1 ensures that reproductive health care—including the right to an abortion—is protected in the State Constitution. This amendment explicitly defines in the State Constitution that people have the freedom to access abortions and contraceptives. This would prevent those rights from being taken from Californians just as it was recently stripped by the conservative U.S. Supreme Court.

Don't be misled by opponents. We can't go back.

Prop. 1 does not change how or when a person can access an abortion in California.

Existing California law provides that women have the right to choose to have an abortion prior to viability, or to protect the woman's life or health. Proposition 1 will not change that.

Don't fall for scare tactics from opponents.

Prop. 1 simply amends the State Constitution to prohibit interference with individual choices on reproductive health care and the fundamental right to choose to have an abortion.

Decisions about abortion and contraception are deeply

personal. They are best made with a health care provider who can provide expert guidance and are bound by professional and ethical standards. Prop. 1 protects that right.

Don't let California go backwards. While the U.S. Supreme Court has turned its back on science, safety and equality with a reversal of *Roe v. Wade*, Prop. 1 ensures that the choice to seek comprehensive reproductive health care will always be protected in California.

Reproductive medical decisions should be made with health care providers, based on scientific facts, free of politics.

YESon1CA.com

Vote YES on Prop. 1.

Sandy Reding, R.N., President

California Nurses Association

Kelly McCue, M.D., District IX Chair

American College of Obstetricians and Gynecologists

Cary Franklin, J.D., Faculty Director

UCLA Center on Reproductive Health, Law and Policy